Case No. 761/24072/26
Proceeding No. 1-ks/761/14944/2026

RULING
IN THE NAME OF UKRAINE

16 June 2026, Investigating Judge of Shevchenkivskyi District Court of Kyiv Trubnikov A.V., having examined the complaint of attorney Miftakhutdinov V.S., acting in the interests of Boguslayev O.V., against inactivity of the prosecutor of the Prosecutor General's Office within the framework of criminal proceeding No. 22017000000000272, the information on which was entered into the Unified Register of Pre-trial Investigations on 6 July 2017, –

ESTABLISHED:

The complaint of attorney Miftakhutdinov V.S., acting in the interests of Boguslayev O.V., against inactivity of the prosecutor of the Prosecutor General's Office within the framework of criminal proceeding No. 22017000000000272, the information on which was entered into the Unified Register of Pre-trial Investigations on 6 July 2017, was received by the investigating judge of Shevchenkivskyi District Court of Kyiv.

The complainant substantiates his demands by stating that the MID of the SB of Ukraine, under the procedural guidance of the Prosecutor General's Office, is conducting a pre-trial investigation in criminal proceeding No. 22017000000000272 dated 6 July 2017, within the framework of which the attorney indicates the presence of grounds for determining the investigative jurisdiction of the criminal proceeding under another pre-trial investigation body, while the latter, contrary to Article 218 of the CPC of Ukraine, did not perform such procedural actions, in connection with which he requests to obligate the prosecutor of the Prosecutor General's Office to determine the investigative jurisdiction of the said criminal proceeding under the National Anti-Corruption Bureau of Ukraine.

The provisions of Article 303 of the CPC of Ukraine provide for an exhaustive list of decisions, actions, or inactivity of the investigator, inquiry officer, or prosecutor subject to appeal; in particular, during pre-trial proceedings, the following decisions, actions, or inactivity of the investigator, inquiry officer, or prosecutor may be appealed:

1) inactivity of the investigator, inquiry officer, prosecutor consisting in failure to enter information about a criminal offense into the Unified Register of Pre-trial Investigations after receiving an application or report about a criminal offense, in failure to return temporarily seized property in accordance with the requirements of Article 169 of this Code, as well as in failure to perform other procedural actions that he is obliged to perform within the time limit established by this Code, – by the applicant, the victim, their representative or legal representative, the suspect, their defense counsel or legal representative, the representative of the legal entity regarding which proceedings are conducted, the possessor of the temporarily seized property, another person whose rights or legitimate interests are restricted during the pre-trial investigation;

2) decision of the investigator, inquiry officer, prosecutor on suspension of pre-trial investigation – by the victim, their representative or legal representative, the suspect, their defense counsel or legal representative, the representative of the legal entity regarding which proceedings are conducted;

3) decision of the investigator, inquiry officer on closing criminal proceedings – by the applicant, the victim, their representative or legal representative;

4) decision of the prosecutor on closing criminal proceedings and/or proceedings regarding a legal entity – by the applicant, the victim, their representative or legal representative, the

suspect, their defense counsel or legal representative, the representative of the legal entity regarding which proceedings are conducted;

5) decision of the prosecutor, investigator, inquiry officer on refusal to recognize as a victim – by the person who was refused recognition as a victim;

6) decision, action, or inactivity of the investigator, inquiry officer, or prosecutor in the application of security measures – by persons to whom security measures provided by law may be applied;

7) decision of the investigator, inquiry officer, prosecutor on refusal to grant a motion for conducting investigative (search) actions, covert investigative (search) actions – by the person who was refused granting of the motion, their representative, legal representative, or defense counsel;

8) decision of the investigator, inquiry officer, prosecutor on changing the procedure of pre-trial investigation and continuing it according to the rules provided for by Chapter 39 of this Code, – by the suspect, their defense counsel or legal representative, the victim, their representative or legal representative;

9-1) decision of the prosecutor on refusal to grant a complaint against failure to comply with reasonable time limits by the investigator, inquiry officer, prosecutor during pre-trial investigation – by the person who was refused granting of the complaint, their representative, legal representative, or defense counsel;

10) notice of suspicion by the investigator, inquiry officer, prosecutor upon the expiration of one month from the day of notifying the person of suspicion of committing a criminal misdemeanor or two months from the day of notifying the person of suspicion of committing a crime, but not later than the closing of criminal proceedings by the prosecutor or filing an indictment with the court – by the suspect, their defense counsel or legal representative;

11) refusal of the investigator, inquiry officer, prosecutor to grant a motion for closing criminal proceedings on the grounds provided for by paragraph 9-1 of part one of Article 284 of this Code, – by the defense, another person whose rights or legitimate interests are restricted during pre-trial investigation, their representative.

Pursuant to Part 2 of Article 303 of the CPC of Ukraine, complaints against other decisions, actions, or inactivity of the investigator, inquiry officer, or prosecutor shall not be considered during pre-trial investigation and may be subject to consideration during preparatory proceedings in court in accordance with the rules of Articles 314–316 of this Code.

According to Part 4 of Article 304 of the CPC of Ukraine, the investigating judge, court shall refuse to open proceedings only if the complaint is filed against a decision, action, or inactivity of the investigator, prosecutor that is not subject to appeal.

Therefore, since attorney Miftakhutdinov V.S., acting in the interests of Boguslayev O.V., appeals against inactivity of the prosecutor of the Prosecutor General's Office, consisting in failure to adopt a decision to determine investigative jurisdiction under another pre-trial investigation body in criminal proceeding No. 22017000000000272, which is not included in the list of decisions (inactivity) defined by Article 303 of the CPC of Ukraine that may be subject to appeal, the investigating judge came to the conclusion to refuse to open proceedings on the complaint of attorney Miftakhutdinov V.S., acting in the interests of Boguslayev O.V., against inactivity of the prosecutor of the Prosecutor General's Office within the framework of criminal proceeding No. 22017000000000272, the information on which was entered into the Unified Register of Pre-trial Investigations on 6 July 2017.

On the basis of the above, guided by Articles 303, 304 of the CPC of Ukraine, the investigating judge –

RULED:

To refuse to open proceedings on the complaint of attorney Miftakhutdinov V.S., acting in the interests of Boguslayev O.V., against inactivity of the prosecutor of the Prosecutor General's Office within the framework of criminal proceeding No. 22017000000000272, the

information on which was entered into the Unified Register of Pre-trial Investigations on 6 July 2017.

The ruling may be appealed in appellate procedure directly to the court of appellate instance within five days.

Investigating Judge **Andriy TRUBNIKOV**